EXHIBIT B

Letter from California Secretary of State Shirley N. Weber, Ph.D., to Secretary of Homeland Security Markwayne Mullin.

SHIRLEY N. WEBER, Ph.D. | SECRETARY OF STATE | STATE OF CALIFORNIA
LEGAL AFFAIRS OFFICE
1500 11th Street | Sacramento, CA 95814 | www.sos.ca.gov

July 23, 2026

Via Email and U.S. Mail

Markwayne Mullin
Secretary of Homeland Security
U.S. Department of Homeland Security
2707 Martin Luther King Jr. Ave. SE
Washington, DC 20528
elections@hq.dhs.gov

Dear Secretary Mullin:

I am in receipt of your letter dated July 16, 2026, claiming that the Department of Homeland Security (DHS) has evaluated a list of registered voters in California and identified allegedly ineligible registrants on our State's voter rolls. California's election officials work every day to maintain accurate voter rolls and ensure that only eligible voters are registered. I have serious doubts about the reliability of your data and accuracy of your claims, since my office has not shared our statewide voter registration list with DHS or any other federal agency or official. Indeed, state law prohibits sharing voters' sensitive information, including social security numbers, with any person, including the federal government. *See* Cal. Elec. Code § 2194(b)(1); Cal. Gov't Code § 7924.000; *United States v. Weber*, 816 F. Supp. 3d 1168, 1183-1184, 1189, 1192 (C.D. Cal. 2026) (holding federal election laws do not require California to share voters' sensitive information with the federal government).

Notably, your letter provides no detail whatsoever that my office can use to evaluate the veracity of your allegations. To effectively evaluate your claims, we require the following information:

1. A detailed description of the methodology utilized by DHS to identify these allegedly ineligible voters, including, but not limited to, all data sources, software, and matching criteria utilized in this analysis, and whether AI was utilized in any part of this analysis; and
2. A detailed description of how DHS came into possession of the list of registered voters in California, including the name and contact information of any individual(s) or entity who transmitted said list to DHS, the date that list was transmitted to DHS, and information regarding the currency of the list such as when the list was last updated.

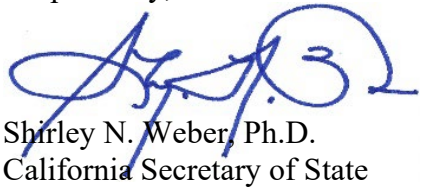
Please provide all of the above information to legalsupport@sos.ca.gov no later than August 3, 2026.

Please be aware that my office will continue to comply with all federal and state law voter list maintenance obligations as we consider your allegations, including the National Voter Registration Act's (NVRA) prohibition on the systematic cancellation of voter registrations

during the 90 days before each federal election. 52 U.S.C. § 20507(c)(2)(A). The "cancellation of registrations based on the systematic comparison of registered voters to various databases" including DHS's SAVE database, "is precisely the type of systematic cancellation program that the 90-day Provision was meant to preclude." *Mi Familia Vota v. Fontes*, 129 F.4th 691, 717 (9th Cir. 2025), cert. granted sub nom. *Republican Nat. Comm. v. Mi Familia Vota*, No. 25-1017, 2026 WL 1855101 (U.S. June 29, 2026); *accord Virginia Coal. for Immigrant Rts. v. Beals*, 803 F. Supp. 3d 454, 473 (E.D. Va. 2025). For the November 3, 2026, General Election, the 90-day "quiet period" begins on August 5, 2026.

I share your dedication to free, fair, and secure elections. As California's chief elections official, I am committed to making every effort to ensure that no eligible voter is erroneously removed from our State's voter rolls, and that no eligible voter is deterred from casting a ballot due to intimidation or coercion.

Respectfully,



Shirley N. Weber, Ph.D.
California Secretary of State